

24TRCV01112 24TRCV01112

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 24TRCV01112 Hearing Date: August 26, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, August 26, 2026

Calendar No.

PROCEEDINGS

Eastland

Forrester, Inc. v. National Tour Integrated Resources, Inc., et al.

24TRCV01112

Andretti Autosport Holding Company, LLC's Motion to Compel Further

Responses to Form Interrogatories, Set One

Andretti Autosport Holding Company, LLC's Motion to Compel Further

Responses to Request for Production of Documents, Set One

TENTATIVE RULING

Andretti Autosport Holding Company,

LLC's Motion to Compel Further Responses to Form Interrogatories, Set One, and

Request for Production of Documents, Set One, are granted.

Background

Plaintiff filed the Complaint on April

3, 2024. Plaintiff alleges the following facts. Plaintiff contracted with

Defendant National Tour Integrated Resources, Inc. Pursuant to the contract, Plaintiff

agreed to manufacture and install a custom-built structure for the benefit of

Defendant Andretti Autosport Holding Company, Inc. Plaintiff has not been fully

paid pursuant to the agreement. Plaintiff alleges the following causes of

action: 1. Possession of Personal Property; 2. Conversion; 3. Trespass to

Personal Property; 4. Breach of Contract.

Motion to Compel Further Responses to Form Interrogatories/Requests for

Production of Documents

Where

responses to interrogatories have been served but the requesting party believes

that they are deficient because the answers are evasive or incomplete, or,

because an objection is without merit, that party may move for an order

compelling a further response. CCP §

2030.300(a). Notice of the motion must

be given within 45 days after service of verified responses in question, or any

verified supplemental responses. CCP §

2030.300(c). The motion must be

accompanied by a meet and confer declaration in compliance with CCP §

2016.040. CCP § 2030.300(b).

A

party responding to an inspection demand shall respond to each demand with one

of the following: a statement the party will comply with the demand, a

representation the party lacks the ability to comply with the demand, or an

objection. (Code Civ. Proc., § 2031.210,

subd. (a).) A response to an inspection

demand may be inadequate because it is evasive or incomplete; contains an

incomplete statement of compliance; an inadequate, incomplete, or evasive

representation of inability to comply; or meritless or overly general

objections to a demand. (Code Civ.

Proc., § 2031.310, subd. (a).)

If

a demanding party believes the responding party responded inadequately, the

demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd.

(a).) "Unless notice of this motion is

given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Defendant set forth meet and confer declarations in sufficient compliance with CCP §§ 2030.300, 2031.310, and 2016.040. (Declarations, Chris S. Pacetti, ¶¶ 5-7).

Motions to Compel

Defendant

moves to compel further responses from Plaintiff to Defendant's Form Interrogatories, Set One – Nos. 17.1, 50.1, and 50.2. Form Interrogatories Nos. 17.1, 50.1, and 50.2 seek basic information regarding Plaintiff's contentions in the Complaint as well as information regarding Plaintiff's claimed damages.

A

simple review of the responses reveals that the responses are non-responsive, inadequate, incomplete, and/or evasive. In addition, Plaintiff failed to justify its objections.

Therefore,

Defendant's motion to compel further responses to Form Interrogatories 17.1, 50.1, and 50.2 is granted.

Defendant

moves to compel further responses from Plaintiff to Defendant's Requests for Production of Documents, Set One, Nos. 1-25.

Plaintiff

failed to submit a response in substantial compliance with CCP § 2031.210 et seq. The responses are inadequate, incomplete, and/or evasive. Instead, Plaintiff served substantially identical responses to each of the requests essentially asserting boilerplate objections and, thereafter, contending that documents would be produced pursuant to a protective order. In addition, Plaintiff failed to justify its objections.

Plaintiff

failed to file any written oppositions to the motions.

Plaintiff

is ordered to serve further responses to the discovery items at issue in these motions - Form Interrogatories Nos. 17.1, 50.1, and 50.2 and Request for Production of Documents 1 to 25, without objections, within 20 days of this date.

Defendant is ordered to give

notice of the Court's ruling.